

25PSCV02312 25PSCV02312

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Tentative Ruling

DEFENDANT

GENERAL MOTORS MOTION FOR JUDGMENT ON THE PLEADINGS is GRANTED (A proposed order has been filed.)

Background

This

is a lemon law case arising from Plaintiffs DANIEL A. RIVERA AND MARIA RIVERA'S July 16, 2017, Plaintiffs entered purchase of a 2017 GMC

Sierra 1500 Denali.

On

June 24, 2025, Plaintiffs filed suit.

On

October 8, 2025, Defendant filed a demurrer.

On

October 21, 2025, an amended complaint was filed.

On

November 24, 2025, Defendant filed an answer.

On

May 6, 2026, Defendant filed the instant motion for judgment on the pleadings (MJOP).

On

July 30, 2026, an opposition was filed.

On

August 3, 2026, a reply was filed.

Discussion

Defendant

brings forth the motion as to the entirety of the FAC.

A.

Counts 1st -3rd

Defendant

argues that Plaintiffs' claims for breaches of the express warranty are barred by new statutes of repose and limitations for such claims that were enacted in 2024 through Assembly Bill No. 1755 and that went into effect earlier this year. The new limitations and repose periods are codified in Code of Civil Procedure section 871.21, subdivisions (a) and (b). They provide that actions governed by section 871.20 shall be commenced within one year after the expiration of the applicable express warranty for a motor vehicle (the statute of limitations in subdivision (a)) and not later than six years after the original delivery date of the vehicle (the statute of repose in subdivision (b)).^[1]

Section

871.21, subdivision (c) states that the time periods in subdivisions (a) and (b)

"shall

be tolled as follows: (1) As provided by tolling requirements prescribed in subdivision (c) of Section 1793.22 of the Civil Code, as applicable. (2) For the time the motor vehicle is out of service by reason of repair for any nonconformity. (3) For the time period after a pre-suit notice is provided to the manufacturer in accordance with [Code of Civil Procedure] Section 871.24, which time period shall not exceed 60 days." (Code Civ. Proc., § 871.21, subd. (c).)

Per another recent

amendment to the Song-Beverly Act that was enacted through Senate Bill No. 26 on April 2, 2025, a manufacturer's election had to be made by May 2, 2025. Also per Senate Bill No. 26, application of the procedural rules triggered by a manufacturer's section 871.30, subdivision (a) election became effective on July 1, 2025. GM opted in to this provision on April 23, 2025.

Here, after a review of the papers, the court agrees that Plaintiffs claims for breach of the express warranty are barred by the statute of limitations in section 871.21, subdivision (a), which is showcased by the FAC itself. Attached to the FAC as Exhibit A is the Express Warranty Manual for the Subject Vehicle, a 2017 GMC Sierra 1500 Denali, including a Bumper-to-Bumper Warranty providing coverage for the "first 3 years or 36,000 miles whichever comes first" and a longer Powertrain Warranty providing coverage "for the first five years or 60,000 miles whichever comes first." With that, under Section 871.21, subdivision (a), the statute of limitations for any defect covered by the bumper-to-bumper warranty would have run on July 16, 2021, one year after the three-year warranty period expired. The statute of limitations for any defect covered by the longer powertrain warranty, e.g., the alleged "Transmission Defect," ran on July 16, 2023, one year after the expiration of the express five-year warranty. Therefore, Plaintiff's express warranty claims are also barred by the statute of limitations.

In opposition, plaintiff advances four arguments as to why the SOL does not bar these COAs: (1) Retrospective Application of New Procedural Statutes to Eliminate Potential Claims Is a Violation of Due Process, and Consequently the New Statute of Limitations Cannot Be Applied In This Case; (2) Civil Procedure Code Section 871.21's Statutes of Limitations Do Not Apply to Inadequate Literature/Parts Claims Under Civil Code Section 1793.2(a)(3); (3) Tolling; and (4) Song-Beverly Actions Filed Prior to July 1, 2025, are Unaffected by Section 871.21's Statutes of Limitations. The court will address each.

As to the first argument, as noted in reply, if the time left to file suit after enactment is reasonable, no such constitutional violation occurs, and the SOL (or repose) is applied as enacted. (*Newman v. Emerson Radio Corp.* (1989) 48 Cal.3d 973, 983.) Whether a party has a reasonable time to file suit after a change in the law is a question of law. Here, Governor Newsom signed AB 1755 (creating Section 871.20 et seq.) into law on September 29, 2024, and publicly released a statement about the signing; effectively, this afforded

consumers a grace period of over three months, a reasonable period of time, to file lemon law cases before the new time limits went into effect on January 1, 2025. Put differently, Plaintiff's right to bring a Song Beverly claim was not extinguished in July of 2024 prior to the legislation's enactment, if Plaintiff wished to be governed by the old Song-Beverly

time limits, Plaintiff could have brought suit as late as 11:59 p.m. on December 31, 2024. Instead, Plaintiff filed almost six months into 2025. (Reply pp. 3-4.)

As to the second argument, as cited in opposition, Section 871.20(a) covers only certain specifically enumerated Civil Code sections: "Notwithstanding any other law, this chapter applies to an action seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty." (Cal. Civ. Proc. Code, § 871.20(a), emphasis added.) Plaintiff argue that his inadequate literature/parts claim under section 1793.2(a)(3) does not arise under any of the sections enumerated in section 871.20(a). But Plaintiff does not address how the statute applies to either (i) seeking restitution or replacement or (ii) civil penalties, and Plaintiff is seeking restitution or replacement. The reply does not address this point.

As to third argument, Plaintiff's opposition is almost entirely a recitation of law without point to the facts in the FAC that would trigger tolling. As noted in the moving papers, Plaintiff is the owner, driver, and possessor of their 2017 vehicle and is both able and required to plead temporal facts related to time Plaintiff was without the vehicle due to repair. Thus, this argument fails.

As to the final argument, Plaintiff argues that because the amended opt in procedures did not become fully effective until July 1, 2025, actions commenced prior to July 1, 2025, are not affected by section 821.21's statutes of limitations via Senate Bill 26. But, as noted by Defendant, Section 871.21 became effective on January 1, 2025. Senate Bill 26 did make a change but to include an opt-in framework for manufacturers and to further extend the

pre-suit filing requirements deadline from April 1, 2025, to July 1, 2025. And this is supported by Plaintiff's own citation to the Legislative Counsel's Digest which states, in part, that "This bill [SB 26] would provide that certain procedures described above would instead become operative on July 1, 2025" and continuing to discuss the election procedure, not discussing the effective date.

Thus, the court determines that counts 1-3 are barred by the SOL.

Count 4: Implied Warranty

Defendant argues that the 4th COA for breach of implied warranty is also time-barred by the four-year statute of limitations, which ran on July 16, 2021. (Comm. Code, § 2725; *Montoya v. Ford Motor Co.* (2020) 46 Cal.App.5th 493, 495.) The claim "accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made....." (Commercial Code § 2725, subd. (2).) In short, Section 2725 of the Commercial Code is clear: there is no delayed-discovery rule with respect to accrual of a claim for breach of an implied warranty. (*Cardinal Health 301, Inc. v. Tyco Electronics Corp.* (2008) 169 Cal. App. 4th 116, 129, 134.) If the contract expressly extends the warranty to "future performance" of the goods, then the claim accrues when the breach is discovered or should have been discovered. But absent such an explicit extension, accrual occurs at the time of the breach, which is the time of delivery of the goods in question. (*Id.* at p. 129.)

Here, the FAC does not allege that the sales agreement for the Subject Vehicle extends the implied warranty to a future performance date by Defendant. Plaintiffs' claim for breach of the implied warranty of merchantability thus accrued when the Subject Vehicle was delivered to them. As not otherwise disputed in opposition, that occurred on or around the date of the sales contract which was July 16, 2017. Accordingly, the SOL ran on July 16, 2021, almost four years before Plaintiff initiated the instant action.

To the extent that Plaintiff contends that *Mexia v. Rinker Boat Co.* (2009) 174 Cal.App.4th 1297, stands for the proposition that the statute of limitations on a claim for breach of the implied warranty of merchantability of a consumer good is tolled

for the duration of the period of the express warranty on the good when the good's defect is latent, not so. The Court in Mexia observed that “[i]n the case of a latent defect, a product is rendered unmerchantable, and the warranty of merchantability is breached, by the existence of the unseen defect, not by its

subsequent discovery.” (Id. at 1304-1305.) (See Reply p. 5.)

County 5: Fraud

As for the fraud COA, the court agrees that the FAC fails to allege with specificity a defect inherent to 2017 GMC Denalis. The court agrees. To the extent that Plaintiff in opposition relies upon *Dhital v. Nissan N. Am., Inc.* (2022) 84 Cal.App.5th 828 (2022), that case is distinguishable, and in fact would support the lack of specificity in this FAC. The plaintiffs in *Dhital* identified pre-sale sources of actual knowledge – such as pre-release testing, consumer complaints, and internal data – linked to a defect known to affect the specific vehicle model. Here, by contrast, Plaintiff offers only generalized allegations that aren't even limited to 8-speed Transmissions in this make and model. Thus, the court is inclined to grant the MJOP as to this COA. Should Plaintiff seek leave to amend, Plaintiff must be prepared with the specific list of facts that could cure the defect.

Conclusion

Based on the foregoing, as much of the COAs are barred by the SOL (1-4) and no facts have been proffered in the opposition as the fraud COA, the court is inclined to grant the entirety of the MJOP without leave to amend.

[1] The opposition does not address the statute of repose. With that, the court will focus on the SOL.